

DEFENCE NARRATIVE - DRUG DRIVING PROCEEDINGS

I. Preliminary Statement

I, the accused, self-represented, submit this narrative in response to charges under the Road Safety Act 1986 (Vic), including Regulation 127, Section 49(1)(bb), 49(1)(h), and Section 18(1)(a). This submission highlights procedural violations under the Criminal Procedure Act 2009 (Vic) and the Charter of Human Rights and Responsibilities Act 2006 (Vic), arguing for exclusion of flawed evidence or dismissal due to procedural injustice.

II. Context of Summary Offences

The charges are summary offences governed by Part 3.1 of the CPA. These proceedings exclude jury trials and require prompt disclosure by prosecution. The duty of procedural integrity intensifies when the accused is unrepresented.

III. Procedural Failures

The prosecution's brief contains several statutory violations under sections 42, 44, 49, and 50 of the CPA, including:

1. Lack of Medical Context: No medical records or expert opinions addressing potential impairment, which are crucial for s49 offences.
2. Toxicological Chain of Custody Gaps: Missing details on analyst identity or qualifications, breaching disclosure norms.
3. No Expert Methodology Reports: Lack of forensic validation precludes rebuttal and undermines evidentiary reliability.
4. Incomplete Witness Statements: Arresting and custodial officer reports are missing, blocking effective cross-examination.
5. No Alibi Disclosure Process: The prosecution failed to trigger the statutory alibi procedure per s50.

IV. Breaches of Legal Standards

These failings violate:

- Section 37(2)(a) CPA - procedural thresholds for admitting evidence;
- Section 50 CPA - alibi disclosure;
- Section 49 CPA - expert evidence disclosure;
- Sections 24 and 25 of the Charter - fair hearing and presumption of innocence.

V. Requested Remedies

I respectfully request:

- Exclusion of non-disclosed or procedurally invalid evidence;
- Adjournment to allow proper defence preparation;
- Alternatively, dismissal of charges due to abuse of process.

VI. Final Submission

This application invokes the Court's authority to address flawed prosecution conduct. Given the self-represented status of the accused, these procedural defects create irreparable prejudice. Proceeding without rectification would deny natural justice.

Filed by: [Accused's Full Name]

Date: [Insert Date]

Venue: Magistrates' Court of Victoria, [Insert Location]

Case Number: [Insert Case Number]